

March 9, 2007



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9579
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain oxidizers in non-DOT specification motor vehicles for bulk shipments. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analysis performed in the development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101, special provision B5 and § 173.243 in that non-DOT specification bulk packagings are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Dyno Nobel, Inc. dated July 31, 2005, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonium nitrate, liquid (<i>hot concentrated solution</i>)	5.1	UN2426	N/A

7. SAFETY CONTROL MEASURES: PACKAGING - Prescribed packagings are non-DOT specification motor vehicles as shown on Dyno Nobel's (formerly Ireco, Inc.) drawings included in the application dated August 29, 1990. The tanks are supported by a structural aluminum I-beam bed which rests on the vehicle chassis frame rails. The tanks may range in size from 8,000 to 25,000 pounds. The two types of authorized tanks are constructed as follows:

a. Tanks as shown on "SLURRY MIXING TRUCK" drawing: The tank shell is constructed in three layers as follows: an inner layer of 10 gauge type 304 stainless steel; a middle layer of 2 inches of urethane foam insulation; and an outer layer of 3/16 inch ASTM B-209 Alloy 5086 aluminum plate. The tank has vertical formed stainless steel stiffeners on the inside of the inner stainless steel wall and two stainless steel baffles. Within the ammonium nitrate solution tank is an 80 gallon water tank.

b. Tanks as shown in drawing number 300099 Rev A: The tank shell is constructed in three layers as follows: an inner layer of 10 gauge type 304 stainless steel; a middle layer of 3 inches of urethane foam insulation; and an outer layer of 12 gauge type 304 stainless steel. The tank has vertical 2 inch stainless steel angle stiffeners placed edge to edge on both sides of the inner stainless steel wall. The ammonium nitrate solution tank has no inner stainless steel baffles. An 80 gallon water tank is placed outside of the ammonium nitrate solution tank.

8. SPECIAL PROVISIONS:

- a. Shippers using the packaging covered by this special permit must comply with all provisions of this special permit, and all other applicable requirements contained in 49 CFR Parts 171-180.
- b. The maximum allowable temperature of the ammonium nitrate liquid is 190° F.
- c. Drivers must have been instructed as to necessary safeguards and procedures in the event of unusual delay, fire, or accident.
- d. The bulk ammonium nitrate liquid may not be allowed to remain in the tank for any period of time that could result in caking. Each tank must be internally inspected at least once a week to prevent any accumulation of product.
- e. Each motor vehicle must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-SP 9579".
- f. Motor carriers operating under the terms of this special permit must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.
- g. Packagings permanently marked 'DOT-E 9579', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 9579'.
- h. Shipping papers displaying 'DOT-E 9579' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator

for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink that reads "Aiane LaValle". The signature is written in a cursive style.

for Bob Richard
Deputy Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln